Cabinet Secretary for the National Treasury and Planning and others v Okoiti and others

[2025] 1 LRC 409

Court: Kenya Supreme Court

Judgment Date: 29/10/2024

Catchwords & Digest

CONSTITUTIONAL LAW - STATUTE – VALIDITY – FINANCE ACT – CONCURRENCE PROCESS – PUBLIC PARTICIPATION – OBLIGATION TO GIVE REASONS – WHETHER *FINANCE ACT 2023* SUBJECT TO CONCURRENCE PROCESS – WHETHER VARIOUS PROVISIONS VALID AS FINANCIAL PROVISIONS – WHETHER NATIONAL ASSEMBLY GIVING VALID REASONS FOR ACCEPTING OR REJECTING SUGGESTIONS MADE IN PUBLIC PARTICIPATION PROCESS – ROLE OF COURT IN ASSESSING CONSTITUTIONALITY OF LEGISLATION – PRINCIPLES TO BE APPLIED – REMEDY – FINANCE ACT 2023, S 23, S 76, S 79, S 84, S 87, S 89 – CONSTITUTION OF KENYA, ART 110, ART 114, ART 165, ART 201, ART 209, ART 221.